

Law & Motion

3. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: PROTECTIVE ORDER RE DEPOSITION OF MELISSA CASE**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

Defendant Michelle Tiernan ("Defendant") filed a Motion for Protective Order re Deposition of Melissa Case on December 9, 2025 (the "Motion for Protective Order"). The Motion for Protective Order was set for hearing on April 27, 2026. The motion is opposed.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. Code Civ. Proc. § 2025.420(a). The motion shall be accompanied by a meet and confer declaration under Section 2016.040. *Id.* The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. *Id.* at § 2025.420(b).

The Motion for Protective Order indicates that it is based, among other things, on "the Declaration of Nathan D. Pastor, Esq. In Support of Motion For Protective Order Re Deposition of Melissa Case and accompanying exhibits" See Motion for Protective Order, p. 2. As noted in the Opposition, no such declaration appears of record. Moreover, no meet and confer declaration pursuant to Code of Civil Procedure section 2016.040 has been filed.

Accordingly, the motion is wholly unsupported by any showing of a basis to grant the motion and procedurally defective. For those reasons alone, the motion must be denied.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is DENIED.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C23-03064
CASE NAME: REIMAGINE CONSULTING VS. GS AND F PLANTS, INC
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS AND COMPLAINT AND SET ASIDE DEFAULT**
FILED BY: GREEN RICHMOND LLC
TENTATIVE RULING:

Cross-defendants Tony Wei Tong Tom and Green Richmond LLC (“Cross-Defendants”) filed a Motion to Quash Service of Summons and Complaint and Set Aside Default on December 9, 2025 (the “Motion to Quash”). The Motion to Quash was set for hearing on April 27, 2026.

On February 20, 2026, the Court entered its order vacating and setting aside the default against Cross-Defendants based on the stipulation of the parties. Subsequently, the Motion to Quash was withdrawn by the moving parties.

Disposition

The Court finds and orders as follows:

1. The Motion to Quash is DROPPED from calendar as moot and WITHDRAWN.

5. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT AS TO GEICO INDEMNITY COMPANY**
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company (erroneously sued as Geico Insurance)’s Motion to Set Aside Entry of Default (“Motion”).

Defendant’s Request for Judicial Notice is **GRANTED**. (Evid. Code § 452(d).)

Procedural History

Plaintiff filed her original complaint on March 11, 2024, naming Geico as Defendant. Geico appeared in the matter and demurred to the complaint. Plaintiff filed a First Amended Complaint on July 2, 2024. There were additional challenges to the pleadings resulting in, relevant here, Plaintiff’s Fourth Amended Complaint (4AC) being filed on October 21, 2025. Thereafter, on November 21, 2025, Plaintiff sought and a default was entered against Geico.

Geico filed this Motion on December 8, 2025. Plaintiff opposes the Motion.

Analysis

Defendant makes several arguments as to why the default should not have been entered against it.